# CODE 4 — ON RESTORATIVE JUSTICE AND GUARANTEE

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## CHAPTER I — GENERAL PROVISIONS, PRINCIPLES AND DEFINITIONS

### Art. 1 — Subject matter, purposes and systematic position

1. This Code governs the prevention and management of conflicts, the procedural ascertainment of violations of the Codes, the reparation of harm and, where possible, the reintegration of persons and Circles into the confederal community. It also governs the grades of offence, the adjudicating bodies and the protection measures provided for by Title VIII of the Constitution.
2. The Code implements the constitutional principles of non-accumulation of power, subsidiarity, centrality of the person, differentiated transparency and deliberation in accordance with the consensus method through the absence of valid reasoned objections.
3. Within the confederal normative system:

   a) Code 1 governs needs, the contribution, production and the Storehouses;

   b) Code 2 governs the criteria of technical and qualitative admissibility of goods and services, the STVs and the SVSs, as well as the related suspensions, exclusions and substitution procedures;

   c) Code 3 governs the decision-making bodies, the deliberative proceedings, the thresholds, the quorums, the majorities and deliberative appeals;

   d) this Code governs the restorative management of conflicts and harm, the procedural guarantees, the precautionary measures within its own competence, the verification of restorative agreements and, in Chapter V, offences and protection measures.
4. The procedure governed by this Code has a restorative and preventive purpose and not a punitive one. It operates within the confederal legal order and neither replaces State jurisdiction nor limits the rights recognised by the Constitution. Until the transition is completed, Article 37 shall apply.

### Art. 2 — Principles of the restorative procedure

1. The restorative procedure is founded on the following principles:

   a) priority of reparation over punishment;

   b) voluntary participation in the restorative conference, without prejudice to the consequences and the protective measures provided for by the Codes;

   c) dialogical reconstruction of the facts, through listening to the accounts, identifying the shared and the contested elements and recognising any harm, in accordance with the procedures of the Technical Annex;

   d) proportionality of the measures to the conduct, the harm and the circumstances of the case;

   e) prevention of repetition of the conduct and removal, where possible, of the causes that gave rise to it;

   f) centrality of the injured person and of the community directly involved;

   g) confidentiality and transparency differentiated according to the levels provided for by Article 15 of Code 3;

   h) presumption of non-responsibility until the conclusion of the applicable procedure, without prejudice to the power to adopt precautionary measures necessary for safety, data protection or the continuity of services, within the limits provided for by Article 9;

i) prohibition of retaliation against anyone who reports, participates or provides information in good faith.

2. No provision of this Code may be interpreted so as to impose on the injured person a meeting, a direct confrontation or a restorative agreement against that person's will.

## Art. 3 — Scope of application

1. This Code applies to reports concerning:

   a) the alleged violation of mandatory rules of the Constitution or of the Codes;

   b) conflicts between members or between Circles;

   c) the conflicts of interest governed by Article 16 of Code 3;

   d) damage to commons, infrastructure or Storehouses governed by Code 1;

   e) violations of data sovereignty and of the rules on data processing provided for by Code 2, Article 20, letter g);

   f) non-performance, non-conformity or cessation of the supply of external goods or services governed by Articles 20 and 24 of Code 2;

   g) violation of the transparency obligations provided for by Article 15 of Code 3;

   h) the offences of Grades 1 to 6 governed by Chapter V.

2. The application of this Code does not transfer to the Guarantee Circle technical, health, allocative or deliberative competences assigned to other bodies.

3. Where a report concerns several areas, the related procedures shall be coordinated pursuant to Article 23. Each body retains competence over the aspect assigned to it by the Codes.

## Art. 4 — Guarantee Circle: nature, composition, incompatibilities and limits

1. The Guarantee Circle is established as an independent body responsible for restorative facilitation and for safeguarding the procedural guarantees provided for by this Code.

2. The Guarantee Circle:

   a) does not exercise ordinary deliberative or allocative powers;

   b) does not carry out technical assessments of conformity or quality reserved to other bodies;

   c) does not replace the competent bodies;

   d) exercises exclusively the functions of restorative facilitation, procedural oversight, adoption of the precautionary measures assigned to it and verification of the performance of agreements, and the other functions expressly assigned to it by the Constitution and the Codes, within the limits established by the Constitution and by the Codes.

3. The Guarantee Circle shall not establish within itself second-instance bodies, enlarged assemblies or permanent jurisdictions. Review is entrusted to the external Panel governed by Article 17.

4. The Guarantee Circle is composed of three to seven persons, drawn by lot through a public and traceable procedure from among those who have completed the training referred to in paragraph 5 and declared their availability. No member shall perform the function for more than ninety consecutive days or for more than one hundred and eighty days in total within a period of three hundred and sixty-five days; renewal takes place in staggered groups, with a minuted handover. At least twelve months shall elapse between two terms of service, pursuant to Article 4.4 of the Constitution. The Guarantee Circle may not be merged with any Council.

5. Admission to the Guarantee Circle requires initial training of at least forty hours in restorative justice, facilitation, Codes 1, 2 and 3 and data processing. An annual refresher of at least forty hours, accompanied by periodic supervision, is also required. Lack of the initial training precludes inclusion in the list of persons eligible for sortition.

6. Competences are separated as follows:

   a) the technical assessment of conformity, the adoption or application of the STVs and the SVSs and the technical exclusion of goods or services fall to the Quality Council, in accordance with Articles 15, 20 and 24 of Code 2;

   b) specialist opinions on health, safety, digital infrastructure or data sovereignty and ecological limits fall to the competent Circles, in accordance with Code 3, Article 8, and Code 2, Article 20, letter g);

   c) allocative resolutions and the determination of the decision-making level, the quorums and the majorities fall to the Assembly of Circle 1 or to the General Assembly, in accordance with Articles 7, 7-bis, 7-ter, 7-quater, 12, 13 and 14 of Code 3;

   d) the calculation and certification of values in UCR and the anti-circumvention verification fall to the Accounting Council, in accordance with Articles 9 and 11 of Code 3 and Articles 20, paragraph 6, and 40, paragraph 4, of Code 1;

   e) procedural protection, restorative facilitation, the adoption of the precautionary measures assigned to it and the formal classification of deliberative defects in accordance with Code 3 fall to the Guarantee Circle.

7. No body may combine, in the same proceedings, the functions of investigator, decision-maker and direct beneficiary of the decision.

# CHAPTER II — FIRST-INSTANCE RESTORATIVE PROCEDURE

## Art. 5 — Report and voluntary nature

1. A report may be submitted by anyone who has a direct interest or has become aware of facts relevant for the purposes of Article 3. The registration of the report and access to it follow the “those entitled” level provided for by Article 15 of Code 3. Upon reasoned request, the report shall be handled at the confidential level provided for by the same Article.

2. Within seven days of receipt, the Guarantee Circle shall carry out a preliminary examination and communicate one of the following determinations:

   a) admission to the restorative procedure;

   b) reasoned inadmissibility, stating the reason and any alternative procedure available;

   c) a proposal for direct mediation, where the nature of the conflict and the consent of the persons involved make it appropriate.

3. Participation in the restorative conference is voluntary. Refusal to participate:

   a) does not constitute an admission of responsibility;

   b) may not be regarded as evidence that the report is well founded;

   c) does not prevent the adoption of the protective, continuity, suspension or exclusion measures provided for by Articles 20 and 24 of Code 2 and by Articles 8, 16, 17 and 18 of Code 3, provided that the conditions and guarantees established by the respective Codes are complied with.

4. The submission of a report is not equivalent to the ascertainment of a violation or of a responsibility.

5. The reporting person shall be informed, within a reasonable time, of the receipt of the report and of the preliminary determinations, within the limits permitted by confidentiality and by the protection of the data of the other persons involved.

## Art. 6 — Stages of the procedure

1. The ordinary procedure consists of the following stages:

   a) submission and registration of the report pursuant to Article 5;

   b) preliminary examination of admissibility;

c) separate hearing of the persons involved, except in the case of express and informed waiver;

d) restorative conference pursuant to Article 7;

e) drafting of the restorative agreement, if any, pursuant to Article 8;

f) performance of the agreement;

g) verification of fulfilment pursuant to Article 21;

h) closure of the procedure;

i) appeal, if any, pursuant to Article 17.

2. The ordinary time limit for concluding the procedure is thirty days from the communication of admissibility. The time limit may be extended on account of the complexity of the case, the reasoned unavailability of the persons involved or the need to obtain specialist opinions. The extension shall be reasoned, communicated to the parties and recorded in the case file.

3. The documentation shall be kept in a reference case file linked, for the relevant parts only, to the Allocation Report provided for by Article 10 of Code 3 and to the transparency levels established by Article 15 of the same Code. The link does not authorise access to personal data that are not necessary for the deliberative or restorative purpose.

4. The procedure may be suspended for the time strictly necessary where:

a) a technical or deliberative proceeding indispensable for ascertaining a precondition is under way;

b) there is a risk to the safety of the persons involved;

c) one of the parties is unable to participate for documented reasons.

The suspension shall be reasoned, communicated to the parties and subject to periodic review.

## Art. 7 — Restorative conference

1. The restorative conference takes place with the participation of:

a) the person to whom the reported conduct is attributed, if that person consents;

b) the injured person, if that person consents;

c) the facilitator designated by the Guarantee Circle;

d) any Circle affected, through a contact person identified in accordance with Code 1;

e) the support persons admitted pursuant to the following paragraphs.

2. Direct confrontation between the parties is the ordinary method, but it is not mandatory. The facilitator may arrange separate hearings, indirect communications or another suitable method, taking into account the wishes and the safety of the persons involved.

3. The participation of the following is permitted:

a) a trusted person chosen by each party;

b) specialist technical support, where necessary in order to understand an STV or an SVS governed by Code 2;

c) legal support, with a function of assistance and without substitutive representation, except as provided for by paragraph 4;

d) further support persons whose presence is necessary to ensure informed and safe participation.

4. Representation in the strict sense is permitted exclusively in the cases provided for by the Constitution or where a person is unable to participate directly and the applicable rules allow representation.

5. The presence of support persons is subject to the consent of the assisted party and to compliance with the rules on confidentiality. The facilitator may limit their participation only on grounds relating to safety, confidentiality or the proper conduct of the conference.

6. The facilitator shall explain to the parties:

a) the purpose and the stages of the conference;

b) the voluntary nature of participation and of the agreement;

c) the rules on confidentiality and recording;

d) the possibility of interrupting or suspending the conference;

e) how to access the appeal provided for by Article 17.

7. The facilitator shall ensure that each party has had an effective opportunity to set out its own account, without pressure, intimidation or retaliation.

## Art. 8 — Restorative agreement

1. The restorative agreement, if reached, shall identify separately:

a) the shared facts;

b) the facts that remain contested;

c) the harm recognised and the harm contested;

d) the agreed measures of material, symbolic or relational reparation;

e) the future commitments and the measures to prevent repetition;

f) the Non-Recurrence Plan, where necessary;

g) the time limits, the methods and the persons responsible for performance;

h) the methods of verification;

i) the processing, retention and level of access to the data relating to the agreement.

2. The agreement may provide for the reparation of a recognised harm even where the parties do not agree on all the facts. A full confession may not be imposed, nor may it constitute a condition for access to the procedure.

3. The agreement shall be drawn up in writing and signed by the participating parties and by the facilitator. It shall be registered at the “those entitled” level provided for by Article 15 of Code 3, unless a different classification is necessary and reasoned in order to protect personal data or confidential information.

4. The agreement may not derogate from the Constitution or from mandatory rules of the Codes. Article 2, paragraph 2, of Code 3 shall apply.

5. No measure in the agreement may impose degrading, dangerous or disproportionate labour, or affect fundamental rights or access to the Basket outside the cases and procedures provided for by the Codes.

6. If no agreement is reached, the facilitator shall record that fact without expressing any judgement as to responsibility. The procedures provided for by the other Codes remain available, provided that the applicable competences and guarantees are complied with.

## Art. 9 — Precautionary measures and continuity

1. Where the report concerns an allocative decision, the Guarantee Circle shall assess whether the conditions exist for the precautionary measures provided for by Article 17 of Code 3.

2. Within seventy-two hours of the request or of becoming aware of an urgent risk, the Guarantee Circle may adopt, by reasoned order:

a) the precautionary suspension of the contested decision, within the limits permitted by Article 17 of Code 3;

b) the imposition or the request of a continuity plan, in accordance with Article 17 of Code 3 and Article 24 of Code 2;

c) temporary measures strictly necessary to preserve the safety of persons or the effectiveness of the review.

3. The continuity of critical services, including connectivity, digital services, infrastructure maintenance and specialist health services, shall be preserved where technically possible. A suspension that causes greater harm than that arising from the contested defect is prohibited, in accordance with Article 17,

paragraph 4, of Code 3, unless continuation entails a serious and immediate risk that cannot otherwise be contained.

4. The precautionary measure does not constitute an anticipated ascertainment of responsibility. It shall be reviewed when the facts or the conditions that justified its adoption change, and it shall cease when the relevant conditions no longer exist.

5. The order shall state the duration, the conditions for cessation, any continuity obligations and the review procedure.

## Art. 10 — Coordination with the rules on deliberative defects

1. The substantive rules on nullity, voidability and curable irregularity are contained exclusively in Article 18 of Code 3.

2. The Guarantee Circle shall not introduce autonomous categories of invalidity. It ascertains and applies, within the limits of its own competence, the effects provided for by Article 18 of Code 3.

3. Where it finds elements that may amount to a serious nullity, the Guarantee Circle shall:

   a) initiate, if necessary, a restorative procedure of its own motion;

   b) inform the body competent to renew or correct the proceeding;

   c) transmit the relevant elements to the competent body, respecting the levels of transparency and confidentiality;

   d) indicate the provision of Code 3 that may have been violated.

4. For the purposes of paragraph 3, the following are examples of possible serious defects:

   a) a concealed conflict of interest, pursuant to Article 16 of Code 3;

   b) the circumvention of a binding negative opinion, pursuant to Article 8 of Code 3;

   c) the absence of the Allocation Report, where it is mandatory pursuant to Article 10 of Code 3.

5. The classification and the effects of the defect remain governed by Code 3. The initiation of the restorative procedure does not replace the proceeding necessary for the act to be redone or validated.

# CHAPTER III — RESTORATIVE MEASURES, EXCLUSION AND REGISTER

## Art. 11 — Types of restorative measures

1. In relation to the case and with the required consent, the restorative agreement may provide for one or more of the following measures:

   a) return of goods or resources;

   b) material reparation of the harm;

   c) activities for the benefit of the community, in compliance with the guarantees of Code 1;

   d) training or refresher training relevant to the conduct and to the prevention of further harm;

   e) a formal apology or recognition of the harm, if freely agreed;

   f) temporary limitation of specific deliberative or representative roles, only if ordered by the competent body and in accordance with the applicable procedures;

   g) temporary accompaniment, supervision or verification;

   h) organisational measures aimed at removing the causes of the conflict or of the violation.

2. The measure shall state the person responsible, the duration, the methods of performance and the criteria for declaring it fulfilled.

3. No measure may exceed the competences of the Guarantee Circle or replace a resolution required by another Code.

## Art. 12 — Proportionality and limits of the measures

1. The restorative measure shall be proportionate to the seriousness of the conduct, the degree of intentionality, any repetition, the extent of the harm and the systemic effects on the commons or on the Storehouses governed by Code 1.
2. The assessment shall also consider:

   a) the conduct subsequent to the facts;

   b) cooperation in the reconstruction and in the reparation, without attributing to silence or to the refusal to participate the value of an admission;

   c) the vulnerability of the persons involved;

   d) the possibility of preventing repetition by less restrictive measures.
3. Punitive measures are not permitted. This is without prejudice to the category exclusion ordered on principle exclusively by the General Assembly, pursuant to Article 14 of Code 3, and to the protection measures of Chapter V.
4. Measures affecting essential functions, rights or access to services are permitted only in the cases and with the guarantees established by the Constitution and by the competent Codes.

## Art. 13 — Exclusion as a measure of last resort and allocation of competences

1. Competences in matters of exclusion are allocated as follows:

   a) Code 2 and the Quality Council assess the technical non-conformity of goods or services and, where the conditions are met, order cessation, substitution or migration in accordance with Articles 20 and 24 of Code 2. A Substitution and Continuity Plan shall be prepared where required by those provisions;

   b) the Guarantee Circle manages the restorative and relational aspect and may facilitate a Non-Recurrence Plan;

   c) Code 3 and the bodies identified by it determine the applicable deliberative level, quorum and majority, in accordance with the matrix of Article 7 and Articles 12, 13 and 14 of Code 3.
2. The temporary exclusion of a supplier, or the temporary limitation of the roles and functions of a member, may be proposed or ordered only by the competent body and after having assessed:

   a) the documented failure of the reasonably practicable restorative measures;

   b) the refusal to participate, without such refusal constituting evidence of responsibility;

   c) the seriousness and any repetition of the violation;

   d) the necessity and proportionality of the measure;

   e) the procedural guarantees and the remedies provided for by the Codes.
3. The definitive exclusion of a supplier or the category exclusion on principle shall be resolved exclusively by the General Assembly pursuant to Article 14 of Code 3.
4. The proposal for definitive or category exclusion shall be reasoned and accompanied by the technical investigation of the Quality Council, where relevant. The Guarantee Circle may report on the procedural and restorative aspects, but it does not replace the technical investigation or the resolution of the General Assembly.
5. For the purposes of the allocation of competences:

   a) the technical exclusion of a good or service falls to the Quality Council and to the deliberative bodies indicated by Code 2;

   b) restorative and relational measures are handled by the Guarantee Circle, whereas limitations of status or role are ordered by the body identified by the Codes;

   c) definitive exclusion or category exclusion on principle falls to the General Assembly.
6. Loss of member status by a person is permitted exclusively in the cases of Article 1.3-bis of the

Constitution and in accordance with Chapter V. The cessation of status for persistent refusal of the CBO, provided for by Article 7.3-bis of the Constitution, is governed solely by Article 29, paragraph 6-bis. No measure under this Article may deprive a member of the rights of Article 1.2 of the Constitution.

## Art. 13-bis — Verification of compliance and deactivation of activities and functions

1. Where the Codes refer to this Code for the verification of compliance, the suspension or the deactivation of a non-compliant activity, function or infrastructure, the following rules apply, without prejudice to the more specific provisions of the sectoral Code:

   a) the verification of compliance is a technical assessment by the competent Council in accordance with the sectoral Code; the Guarantee Circle does not carry it out, pursuant to Article 4, paragraph 2, letter b);

   b) if compliance is technically impossible, the deactivation shall be resolved by the Assembly of Circle 1 or, for the functions of Circles 2 and 3, by the General Assembly, on a reasoned proposal from the competent Council, with the procedures of Article 7 of Code 3 where the matrix requires them;

   c) the proposal shall be accompanied by a Substitution Plan with a certain final deadline. Where the function guarantees services of levels 1 and 2 of the Basket, the deactivation takes effect only after the activation of the substitute function, without prejudice to the urgent measures of letter d);

   d) the suspension necessary to deal with a serious and immediate risk shall be adopted in accordance with the sectoral Code and Code 14 and shall be communicated without delay to the Assembly;

   e) the guarantees, the precautionary measures and the appeals of this Code and of Article 17 of Code 3 remain unaffected. Where the non-compliance is attributable to a person, the ascertainment of the facts and any measures concerning that person follow Chapters II and V.

## Art. 14 — Restorative Register

1. The Guarantee Circle keeps the Restorative Register in accordance with the transparency levels provided for by Article 15 of Code 3. The Register distinguishes:

   a) aggregated and anonymised public data, including statistics and overall outcomes;

   b) the information relating to the Exclusions Register provided for by Article 15 of Code 3, accessible in accordance with the rules established by the same Article;

   c) agreements, investigations, objections and opinions accessible to those entitled;

   d) personal data, credentials and information on the security of infrastructure, accessible exclusively to the persons authorised pursuant to Article 20, letter g), of Code 2 and to the provisions of Code 6 on health data.

2. For each proceeding the Register shall record at least an identifier, the opening date, the status of the procedure, the closing date and the outcome in the form compatible with the applicable transparency level.

3. The publication of information for the purpose of public shaming, retaliation or stigmatisation of a person is prohibited.

4. The transparency obligations do not authorise the disclosure of personal data or the violation of data sovereignty.

5. Retention periods, rectification, erasure and access to data are governed by Codes 2 and 7 and, for health data, by Code 6.

# CHAPTER IV — SAFEGUARDS, APPEALS AND FINAL PROVISIONS

## Art. 15 — Impartiality, abstention and substitution

1. A member of the Guarantee Circle who has a personal interest in the case, a direct relationship with a party or any other circumstance capable of compromising that member's impartiality shall declare the conflict and abstain.
2. The parties may report a possible conflict of interest by reasoned application. The decision on abstention shall be adopted without the participation of the member concerned and shall be minuted.
3. If the conflict concerns the entire Guarantee Circle, its members shall be replaced by sortition from among trained members of other Circles, in accordance with the mechanism provided for by Article 4, paragraph 4, of Code 3 for the assessment of the validity of objections by an independent substitute body.
4. The substitute member may not have taken part in the contested investigation nor have a direct interest in the outcome.

## Art. 16 — Protection of the reporting person and prohibition of retaliation

1. Any retaliation against anyone who submits a report, participates in a procedure or provides information in good faith is prohibited.
2. Retaliation constitutes an autonomous violation and may give rise to the opening of a new procedure pursuant to Article 5.
3. The Guarantee Circle shall assess, upon request or of its own motion, the protection measures necessary to prevent intimidation, pressure or detriment during the procedure.
4. Protection measures shall be proportionate, temporary and reasoned, and may not be used to anticipate a judgement as to responsibility.

## Art. 17 — Appeal and external Review Panel

1. The first instance takes place by means of the procedure and, if reached, the restorative agreement governed by Articles 6, 7 and 8.
2. The party concerned may lodge an appeal within fourteen days of the communication of the first-instance outcome. An appeal is admissible exclusively on the grounds of:
   a) violation of the procedural rules;
   b) manifest disproportion of the measure;
   c) violation of the Constitution or of a mandatory rule of the Codes.
3. The appeal shall be examined by an ad hoc Review Panel, external to the Guarantee Circle that handled the first instance and non-permanent, composed of:
   a) a trained facilitator, drawn by lot from among persons not belonging to the Guarantee Circle that handled the case;
   b) a member of the Quality Council not involved in the contested investigation pursuant to Code 2;
   c) a person drawn by lot from among the members of the Assembly of a Circle 1 other than the one directly concerned, without allocative deliberative powers in the review proceeding.
4. The sortition shall be traced at the level provided for by Article 15 of Code 3. No member of the first instance may take part in the second instance. The rules on abstention and substitution of Article 15 of this Code shall apply.
5. The Panel is constituted for the individual appeal, shall decide within fourteen days of its constitution and shall be dissolved once the decision has been communicated. The decision does not constitute a

binding precedent and concerns exclusively the case examined. It shall be published in the Archive provided for by Article 35-bis.

6. For the sitting to be valid, the presence of all three members is required. The Panel shall decide in accordance with the consensus method provided for by Article 4 of Code 3. If consensus is not reached, it shall decide by majority with a statement of reasons; the dissent shall be recorded in accordance with Articles 10 and 13 of Code 3.

7. The Panel may:

   a) confirm the contested outcome;

   b) annul it for procedural defect and refer the case back to a new conference with a different facilitator;

   c) adjust the measure where it proves manifestly disproportionate.

The Panel may not order a definitive or category exclusion, which is reserved to the General Assembly pursuant to Article 14 of Code 3.

8. If the appeal is lodged exclusively by the person to whom the measure is addressed, the Panel may not make the contested measure more severe.

9. The decision shall be recorded and communicated to the parties in accordance with the transparency levels provided for by Article 15 of Code 3.

## Art. 18 — Connection with Code 1: requirement, production and Storehouses

1. Where the reported conduct has caused damage to commons or to the Storehouses governed by Code 1, the procedure shall assess as a priority the material reparation of the damage and, where necessary, a Non-Recurrence Plan.

2. The production Competence Circle may be involved in order to ascertain the technical methods of reparation, without assuming functions of ascertainment of responsibility reserved to the applicable procedure.

3. For the verification of the damage and of the related traceability, Articles 17 and 26 of Code 1 shall apply.

## Art. 19 — Connection with Code 2: quality, STVs, SVSs and exclusions

1. The technical assessment of conformity, the application of the STVs and the SVSs and the technical exclusion of goods or services fall to the Quality Council in accordance with Articles 15, 20 and 24 of Code 2. The calculation and certification of values in UCR fall to the Accounting Council in accordance with Article 9 of Code 3.

2. Data sovereignty, data location, key management, sub-suppliers and jurisdiction are governed by Article 20, letter g), of Code 2.

3. The Guarantee Circle does not assess the technical conformity of the STVs or the SVSs. It may examine exclusively the procedural and restorative aspects that fall within its own competence.

4. Where the technical assessment is necessary for the restorative procedure, the Guarantee Circle shall request the opinion of the competent body without taking its place.

## Art. 20 — Connection with Code 3: deliberation, thresholds and Assembly

1. The types of operational, allocative and constitutive decision are governed by Article 3 of Code 3.

2. Reasoned objections, the consensus method and the assessment of the validity of objections are governed by Article 4 of Code 3.

3. The economic thresholds and the UCR methodology are governed by Articles 5 and 9 of Code 3.

4. The risk threshold, the documented preliminary assessment, the confirmation in the definitive STV or SVS and the prevalence of the higher level are governed by Articles 6 and 7, paragraph 2, of Code 3.
5. The binding matrix, the special or reinforced procedures and the related guarantees are governed by Articles 7, 7-bis, 7-ter and 7-quater of Code 3.
6. Binding negative opinions and the prohibition on circumventing them are governed by Article 8 of Code 3.
7. The Allocation Report is governed by Article 10 of Code 3.
8. The anti-circumvention provisions, foreseeability and the 180-day presumption are governed by Article 11 of Code 3.
9. The composition of the Assembly of Circle 1, participation, the quorums and the treatment of abstentions are governed by Article 12 of Code 3. The technical Councils are governed by Article 12-bis of the same Code.
10. The assembly decision, mediation, the qualified majority and the denominator of active participants, excluding abstainers in the cases provided for, are governed by Article 13 of Code 3. The Conscientious or Ecological Sustainability Objection is governed by Article 13-bis of the same Code.
11. The General Assembly, the calibration of the thresholds, category exclusion on principle, the first calibration within six months and the at least annual revision are governed by Article 14 of Code 3.
12. Differentiated transparency is governed by Article 15 of Code 3.
13. Conflicts of interest are governed by Article 16 of Code 3.
14. The appeal and the continuity of services are governed by Article 17 of Code 3.
15. The effects of nullity, voidability and curable irregularity are governed by Article 18 of Code 3.
16. The status and the effects of the Technical Annexes that are binding as to methodologies are governed by Article 19 of Code 3.
17. The inter-Code links and the related cross-references are governed by Article 20 of Code 3.

## Art. 21 — Verification of fulfilment

1. The Guarantee Circle shall verify the fulfilment of restorative agreements, as a rule, at three and at six months from their signature. The agreement may establish different deadlines where the nature of the measure so requires.
2. The verification is limited to the obligations provided for by the agreement and does not entail further checks on the person.
3. In the event of non-fulfilment, the Guarantee Circle shall hear the parties concerned and assess:
    a) whether the non-fulfilment is justified by a supervening impediment;
    b) whether it is possible to modify the time limits or the methods of performance;
    c) whether it is necessary to reopen the conference with a different facilitator;
    d) whether the conditions exist for proposing a further measure pursuant to Article 13.
4. Non-fulfilment does not automatically give rise to exclusion or to a sanction. Any consequences shall be adopted by the competent body in accordance with the applicable Codes.

## Art. 22 — Confidentiality

1. The outcome of the procedure may be published in aggregated form. Personal details remain confidential in accordance with the transparency levels provided for by Article 15 of Code 3 and by Article 20, letter g), of Code 2.
2. Before the conference, the parties shall be informed of the methods of recording, retention, access and

publication of the data. The consent of the parties may not derogate from the data protection obligations or authorise the disclosure of information belonging to third parties.

3. The documents of the procedure are accessible exclusively to the authorised persons and to the extent necessary for the performance of their respective functions.

4. The information collected in the procedure may not be reused for incompatible purposes, nor for profiling, retaliation or stigmatisation.

## Art. 23 — Prohibition of duplication and coordination of procedures

1. The same conduct may not be subjected to parallel proceedings having the same subject matter and the same function.

2. Coordinated procedures are permitted where they concern distinct and non-duplicative aspects, including:

    a) the deliberative aspect governed by Code 3;

    b) the harm to the person or to the community;

    c) the violation of the rules on data provided for by Article 20, letter g), of Code 2;

    d) the risk to the continuity of services provided for by Article 17 of Code 3 and by Article 24 of Code 2;

    e) the technical aspect within the competence of Code 2.

3. In coordinated proceedings a reference case file shall be identified. Communication between the bodies shall be limited to the necessary information and shall clearly state:

    a) the subject matter of each proceeding;

    b) the body competent for each aspect;

    c) the opinions requested and obtained;

    d) any precautionary measures adopted;

    e) the time limits and the effects of the decisions.

4. The coordinated procedure does not confer on one body the competence belonging to another and does not allow measures or consequences to be duplicated for the same fact.

## Art. 24 — Entry into force, Technical Annex and constitutional compatibility

1. This Code shall enter into force in accordance with the coordination provision approved with Codes 2 and 3.

2. The Technical Annex on Restorative Procedures supplements this Code and binds the methodologies of application within the limits provided for by Article 19 of Code 3. The Annex applies to the procedures governed by Articles 2, 5, 6, 7, 8 and 11 of this Code.

3. This Code implements the constitutional principles of non-accumulation of power, subsidiarity, consensus, differentiated transparency and procedural guarantee. In the event of conflict, the Constitution shall prevail.

4. Before the definitive filing of the version, a simulation shall be carried out on a sample of between eight and ten concrete cases, built on the matrix of Article 7 of Code 3 and on the restorative procedures of Article 6 of this Code. The outcomes of the simulation shall be documented and used to identify any drafting or procedural ambiguities.

# CHAPTER V — OFFENCES, ADJUDICATING BODIES AND PROTECTION MEASURES

## Art. 25 — Common principles and guarantees

1. This Chapter implements Articles 1.3-bis, 7.3, 7.3-bis, 17.9, 18.7, 30 and 31 of the Constitution. The restorative procedure of Chapters II, III and IV remains the ordinary and priority route. The bodies of this Chapter intervene where it is not accepted, does not produce an agreement or is not adequate to the seriousness of the fact.
2. No one may be subjected to a measure for a fact which, at the time it was committed, was not provided for as an offence by the Constitution or by the Codes. The definitions of offences may not be extended by analogy.
3. The person is presumed not responsible until the final decision. For Grades 4, 5 and 6, responsibility shall be proved beyond all reasonable doubt. Silence and the refusal to participate do not count as an admission.
4. The person to whom the fact is attributed has the right:
    a) to know the facts alleged and the elements collected;
    b) to the two trusted facilitators and the trusted person provided for by Article 31.5 of the Constitution;
    c) to be heard, to submit elements and to request that other persons be heard;
    d) to a written and reasoned decision;
    e) to the review provided for by Article 35.
5. The injured person has the right to immediate protection, to be heard, to a trusted person, to information on the progress of the procedure and to reparation. No meeting with the person to whom the fact is attributed may be imposed on the injured person.
6. No measure may have a punitive purpose. Among the suitable measures, the least restrictive shall be chosen. No measure may suppress the vital guarantees of Article 30.4 of the Constitution. After the cessation of status provided for by Article 29, paragraph 6-bis, the rights of the last sentence of Article 1.3 and of Article 4.9 of the Constitution and the portion assigned pursuant to its Article 7.3-bis remain guaranteed to the person.
7. Each body may be assisted by an exclusively advisory mediation AI. No assessment of responsibility or of dangerousness may be formulated or predicted by an AI.
8. No one may be judged twice for the same fact. Article 23 shall apply.
9. To facts committed by persons who have not reached the age of eighteen, exclusively restorative, educational and protection measures shall apply, defined with the Care Council and with the Competences Council. Article 30, paragraph 3, and Articles 31, 32 and 33 shall not apply. Where there is a concrete and present danger to the safety of others that the other measures cannot contain, the Guarantee Tribunal, by the final decision ascertaining a fact of Grade 4, 5 or 6, may order, by six votes out of seven, protected educational reception: the person resides with persons or in an educational community identified with the Care Council, which are open, without a protected perimeter or surveillance by the Civic Protection Corps, with an educational project, daily mentoring and continuity of learning and of contact with loved ones. The reception lasts no more than twelve months and is renewable once only by a new decision; it is reviewed by the Tribunal at least every three months and ceases when the danger ceases to exist. If the person reaches the age of eighteen during the reception, it continues within the same duration in a placement suited to their age.

## Art. 26 — Grades of offence

1. Offences are ordered in six grades, pursuant to Article 30.2 of the Constitution:

a) **Grade 1:** minor non-observance of a common rule or a conflict that has not produced appreciable harm;

b) **Grade 2:** violation that has produced limited and reparable harm to a person, to an animal or to the commons;

c) **Grade 3:** serious or repeated violation of the duties of co-responsibility, or significant damage to the commons, without violence to the person. This includes refusal of the CBO continued beyond sixty days without justification, pursuant to Article 7.3 of the Constitution; the private accumulation and rent prohibited by the Constitution and by the Codes; retaliation against a reporting person; serious violation of the rules on data; ill-treatment of animals;

d) **Grade 4:** attack on the common guarantees or violence to the person that does not fall within Grades 5 and 6. This includes the facts that the Constitution classifies as Grade 4 in Articles 4.4, 15.2, 16.1, 16.5, 17.5 and 18.6; the resource blackmail provided for by Article 11 of Code 15; the buying or exchange of votes; serious threat; battery and non-serious bodily harm; intentional damage to vital infrastructure; the killing or torture of animals;

e) **Grade 5:** serious violence against the person. This includes intentional serious bodily harm, sexual violence, sexual acts with minors, kidnapping and the reduction of a person to a condition of servitude;

f) **Grade 6:** intentional homicide, torture and Grade 5 facts that have caused death or very serious permanent injuries or have been committed to the detriment of several persons.

2. The classification of the grade falls to the competent body, by reasoned decision. In case of doubt, the lower grade shall apply.

3. The Codes may classify specific conduct within Grades 1 to 4. The definitions of offences of Grades 5 and 6 are exclusively those of this Article. The use of force in personal defence is classified in accordance with Article 26-bis.

## Art. 26-bis — Personal defence: lawfulness, excess and assessment

1. The use of force, interposition, holding and entry into a Circle 0 carried out within the limits of Article 17.9 of the Constitution and of Article 8-sexies of Code 14, including defence against an animal that attacks a person provided for by paragraph 8 of that Article, do not constitute an offence.

2. Excess, and error as to the existence, imminence, duration or seriousness of the aggression or of the ill-treatment, do not constitute an offence where they are due to fear, panic or distress that are excusable in the concrete circumstances. Excusability shall be assessed according to the circumstances as they appeared to the person at the time of the fact, taking into account in particular the speed of events, the difference in strength, the age and the physical and mental condition of the person and the violence they had already suffered from the aggressor. The error of a person who sought the confrontation in order to be able to use force is not excusable, nor is that of a person who acted out of the mere fear of a future aggression, without a concrete and immediate danger.

3. Outside the case of paragraph 2, the use of force beyond what is strictly necessary, during an ongoing aggression or ill-treatment and for the purpose of bringing it to an end, constitutes a Grade 4 offence, even when serious injury or death has resulted. Where the excess has caused only slight and reparable harm, it constitutes a Grade 2 offence; where it has caused no appreciable harm, a Grade 1 offence.

4. The use of force that does not constitute defence within the meaning of Article 8-sexies, paragraph 5, of Code 14, including force aimed at killing or seriously injuring when it was not necessary to bring the aggression to an end, is classified in accordance with Article 26, paragraph 1. The aggression suffered shall be taken into account in the choice of measures.

5. The assessment shall proceed as follows:

a) the Guarantee Circle receives the report provided for by Article 8-sexies, paragraph 10, of Code 14, or the report pursuant to Article 5, opens the case file, hears the persons involved separately pursuant to Article 28, paragraph 2, and activates the protection of those who need it;

b) the Guarantee Circle transmits the case without delay to the Guarantee Tribunal where death or serious injury has resulted from the fact; where there are elements of a non-excusable excess or of a fact provided for by paragraph 4; where force has been used between persons who belong to the same Circle 0 or live together, or against a minor or a person who is unable to protect themselves; where force has been used by or against a member of the Civic Protection Corps; where the person against whom force was used, the person defended or the person who used force so requests;

c) in the other cases the Guarantee Circle, if no elements of an offence emerge, communicates this by reasoned determination to the persons involved pursuant to Article 5, paragraph 2, letter b). The determination does not ascertain responsibility and does not prevent the request for transmission under letter b);

d) the Guarantee Tribunal ascertains whether the limits of Article 8-sexies of Code 14 have been respected, whether paragraph 2 applies and, if not, the grade. Where a reasonable doubt remains as to the existence of the defence, responsibility for the use of force is not ascertained, pursuant to Article 25, paragraph 3. Where several persons invoke defence, the Tribunal ascertains who began the aggression. Where it ascertains an excess of Grade 1 or 2, the Tribunal transmits the case to the Guarantee Circle for the procedure of Article 28, paragraph 1, letter a); the ascertainment of the facts remains unaffected;

e) entry into a Circle 0 for the purposes of defence or of urgent assistance provided for by Article 8-sexies, paragraph 9, of Code 14 is in every case communicated to the Guarantee Tribunal, which within twenty-four hours reviews whether it took place within the limits of that paragraph and of Article 5.1, letter a), of the Constitution and orders, where necessary, the protection of the persons who live there. Entry outside those limits is classified in accordance with Article 26.

6. The defence invoked does not prevent the precautionary measures of Article 34, the protection pathways of Article 7-bis of Code 12 for each of the persons involved, or the assessment of the initial aggression. Where force has been used between persons who belong to the same Circle 0 or live together, the Guarantee Circle:

   a) hears each person separately and without the presence of the other;

   b) offers each, if they so request, separation and temporary accommodation pursuant to Article 34;

   c) informs the Care Council where minors or persons who are unable to protect themselves live in the Circle 0;

   d) where defence is invoked more than once in the same Circle 0 within twenty-four months, proposes in every case a protection pathway and takes this into account in the transmission to the Guarantee Tribunal.

7. Article 25, paragraph 9, applies to facts committed by persons who have not reached the age of eighteen. For excess in defence only restorative, educational and support measures, defined with the Care Council, are permitted; protected educational reception may not be ordered. The Care Council offers support to the minor who has defended themselves or other persons.

8. Even when the use of force does not constitute an offence, the restorative procedure of Chapters II, III and IV remains available, on a voluntary basis, to all the persons involved. A person who has defended themselves within the limits of Article 8-sexies of Code 14 is not required to make reparation.

9. During the transition Article 37 shall apply. The assessment provided for by this Article has effect only within the internal order and does not replace that of the authorities of the State. A person who has used force shall be informed of the right to legal assistance provided for by the law in force.

## Art. 27 — Competent bodies

1. For offences of Grade 1 and 2, the Clarification Assembly of Circle 1 is competent. It operates as a section of the Assembly composed of seven persons drawn by lot for each case from among the members unconnected with the facts, and it is assisted, without the right to vote, by a facilitator of the Guarantee Circle.

2. For offences of Grade 3, the Transformation Council is competent, composed of five persons drawn by

lot for each case: three from among the members of Circle 1 unconnected with the facts and two from among the members of other Communities of the same Circle 2.

3. For offences of Grade 4, 5 and 6, for the urgent review within twenty-four hours and for the other guarantee functions assigned by the Codes, the Guarantee Tribunal of Circle 2 is competent, composed of seven persons drawn by lot for each case from the list of Article 36. The members belong to Communities other than those of the person to whom the fact is attributed or who is concerned by the decision and of the injured person; at least three hold legal training validated in accordance with Code 5.

4. The bodies are constituted for the individual case and are dissolved upon the decision. No one may sit on more than three panels within a period of twelve months. The rules on abstention of Article 15 shall apply.

5. Decisions are taken by consensus. Failing that, a majority of two thirds of the members is required. For the measures of Article 30, paragraph 3, and Article 31, six votes out of seven are necessary.

6. The Guarantee Circle receives the reports, facilitates the restorative procedure, conducts the preliminary investigation and keeps custody of the case files. It does not ascertain responsibility and does not order measures, except as provided for by Articles 9 and 34 of this Code and by Article 7-bis, paragraph 3, letter b), of Code 12. It also adopts the other acts expressly assigned to it by the Codes, such as the appointment of the temporary representative of Article 7-bis, paragraph 5, of Code 12, the opinion and the authorisation of Article 10, paragraphs 6 and 7, of Code 6 and the review of Article 2-bis, paragraph 4, letter d), of Code 6.

## Art. 28 — Procedure

1. Having received the report pursuant to Article 5, the Guarantee Circle shall provisionally classify the grade and:

   a) for Grades 1 and 2, initiate the restorative procedure; if it is not accepted or does not produce an agreement within the time limits of Article 6, it shall transmit the case to the Clarification Assembly;

   b) for Grade 3, transmit the case to the Transformation Council, after having proposed the restorative procedure;

   c) for Grades 4, 5 and 6, transmit the case without delay to the Guarantee Tribunal and activate the protection of the injured person.

2. The investigation comprises the separate hearing of the persons involved and the collection of the relevant elements, in compliance with Article 18 of the Constitution. Health examinations require the consent of the person, in accordance with Code 6.

3. The hearing is not public where the injured person so requests or the need to protect a minor so requires. The decision shall be published in anonymised form, in accordance with Article 14.

4. The decision shall be adopted, as a rule, within thirty days for Grades 1 and 2, within sixty days for Grade 3 and within one hundred and twenty days for Grades 4, 5 and 6. The extension shall be reasoned and communicated to the parties.

5. The decision shall ascertain the facts, the grade and the responsibility and shall state the measures, their duration, the methods of verification and the time limits for review.

## Art. 29 — Measures for Grades 1 to 4

1. For Grades 1 and 2, exclusively the measures of Article 11 are permitted, except for the suspension provided for by paragraph 4-bis for refusal of the CBO. No other limitations of rights are permitted.

2. For Grade 3, the Transformation Council shall define with the person a Transformation Plan of a duration not exceeding twelve months, renewable once only. The Plan may include the reshaping of tasks, mentoring, reparation of the harm and, only if necessary, the suspension of the CdR and of access to non-essential goods and temporary exclusion from the sortitions for offices.

3. The following constitute justification for refusal of the CBO, pursuant to Article 7.3 of the Constitution:

   a) conscientious objection to a task, with assignment of an equivalent activity;

   b) the exemptions, reductions and suspensions of Article 11 of Code 1 and the impediments recognised in accordance with Codes 6 and 12;

   c) the absence of the safety conditions, of the PPE or of the training required by Codes 1 and 14;

   d) the pendency of an appeal with suspensive effect;

   e) for a person who has grown up in the Confederation, the period preceding the choice provided for by Article 26.4 of the Constitution or the expiry of the related time limit, pursuant to Article 6, paragraph 6, of Code 5.

4. Before any measure for refusal of the CBO, the person shall be informed of the right to the Autonomous Coexistence Pact, pursuant to Article 4.9 of the Constitution.

4-bis. In implementation of Article 7.3 of the Constitution, refusal of the CBO that does not yet constitute a Grade 3 offence shall be dealt with as follows:

a) anyone who has knowledge of it, including the Storehouse Council, shall report it to the Guarantee Circle pursuant to Article 5. The Guarantee Circle shall verify whether a justification under paragraph 3 applies and, if none applies, shall refer the case to the Clarification Assembly, constituted pursuant to Article 27, paragraph 1;

b) the Clarification Assembly shall hear the person, assess with the Storehouse Council the readjustment of tasks, propose a mediation facilitated by the Guarantee Circle and inform the person in writing pursuant to paragraph 4. The sixty days of Article 7.3 of the Constitution run from the day of this information; periods during which a justification under paragraph 3 applies shall not be counted;

c) if, at least fourteen days after the information under letter b), the readjustment and the mediation have been unsuccessful, the Clarification Assembly may order, by reasoned decision, the suspension of the CdR and of access to non-essential resources. The Basket, housing, care, learning, the vote and the other rights of Article 1.2 of the Constitution remain intact;

d) the suspension ceases by operation of law when the person resumes the CBO, as verified by the Storehouse Council, or when a justification under paragraph 3 arises. The Clarification Assembly shall revoke it, at the request of the person, when the conditions for it cease to exist;

e) once the sixty days have elapsed, if the refusal persists the Guarantee Circle shall refer the case to the Transformation Council pursuant to Article 28, paragraph 1, letter b); otherwise the suspension ceases. A suspension already ordered continues until the decision of the Transformation Council and in any case for no more than sixty days from the referral; after the decision it continues only if the Plan of paragraph 2 provides for it;

f) an appeal against the suspension may be brought before the Review Panel pursuant to Article 35, paragraph 1. The appeal does not suspend the measure, unless the Panel decides otherwise, and does not interrupt the time limit of letter b).

By way of derogation from Article 27, paragraph 4, the Clarification Assembly remains constituted for the case until the suspension ceases or until the referral under letter e). The suspension does not ascertain an offence and is not recorded as a measure for an offence.

5. For Grade 4, the Guarantee Tribunal may order, in addition to the restorative measures:

   a) exclusion from the sortitions for offices and for the Councils, for no more than thirty-six months;

   b) a transformation pathway with periodic verifications;

   c) a prohibition on approaching specified persons or places, or temporary protective removal for no more than twelve months, with assignment of other adequate housing;

   d) the handing over or deactivation of the instruments used to commit the fact.

6. No measure under this Article entails containment or loss of member status. The sole exception is the

cessation of status for persistent refusal of the CBO provided for by paragraph 6-bis, in implementation of Article 7.3-bis of the Constitution.

6-bis. In implementation of Article 7.3-bis of the Constitution, refusal of the CBO that persists after Grade 3 shall be dealt with as follows:

a) once the Transformation Plan of paragraph 2 has been concluded, including its renewal if ordered, the Transformation Council shall ascertain whether the refusal persists without justification. The justifications of paragraph 3, the exemptions, reductions and suspensions of Article 11 of Code 1, conscientious objection and the impediments due to illness, disability, age or pregnancy recognised in accordance with Codes 6 and 12 do not constitute refusal. In case of doubt the refusal is not ascertained;

b) if the refusal persists, the Guarantee Circle shall inform the person in writing of the consequences provided for by this paragraph, of the right to the Autonomous Coexistence Pact pursuant to paragraph 4 and of the possibility of resuming the CBO. After thirty days without resumption, it shall refer the case to the Guarantee Tribunal;

c) the Guarantee Tribunal shall hear the person with the guarantees of Article 25, paragraph 4, verify the preconditions of letters a) and b) and may declare, by six votes out of seven, the cessation of member status. Review under Article 35, paragraph 2, is permitted against the decision. The decision takes effect when it is final and the portion of letter e) has been handed over; until then the person remains a member. The procedure lapses if the person resumes the CBO before the decision takes effect;

d) the cessation produces the effects of Article 4.8 of the Constitution: the person loses access to the Basket and to the Common Storehouses, common housing, the CdR, the confederated services, the vote and offices. The person retains the Personal-Use Goods, drinking water, life-saving emergency care and the other rights of Article 4.9 of the Constitution;

e) by the same decision the Tribunal shall assign to the person in custody of use a portion of the share reserved for the Pact, pursuant to Article 4-bis, paragraph 10, of Code 10, with access to the necessary water, without a dwelling and without tools or other goods of the Community. The person may build a shelter on it by their own efforts, in compliance with the ecological conditions of the portion. The transfer takes place without the use of force on the person, in the manner provided for by Article 32-bis, paragraph 2, letter e);

f) the person may apply at any time for readmission pursuant to Article 4.8 of the Constitution, by resuming the CBO. Readmission may not be refused on account of the past refusal and takes effect from the application; the portion returns to the share. A new refusal is dealt with afresh in accordance with paragraph 4-bis;

g) minor children retain member status and all rights. The Tribunal decides in their interest, by the same decision or by a separate decision, where and with whom they live, pursuant to Article 7-bis, paragraph 3-bis, of Code 12. If they live with the person, the housing, the Basket and the services due to them are ensured in the place where they live. The cessation does not, by itself, remove the responsibility for care or the consent to care provided for by Article 2-ter of Code 6, and does not constitute serious neglect or harm within the meaning of Article 7-bis of Code 12;

h) refusal that persists after the cessation does not constitute a new offence.

During the transition the cessation consists in exclusion from the pilot Circle pursuant to Article 37, paragraph 4, and the portion is assigned only in the forms permitted by the law in force, pursuant to Article 4-bis, paragraph 9, of Code 10.

## Art. 30 — Grades 5 and 6: two-chances rule

1. The first final decision ascertaining a fact of Grade 5 or 6 shall always give rise to a pathway of protection and transformation. The extreme measures of Article 31 are reserved for recidivism.
2. The pathway comprises, as necessary:

a) the protection of the injured person and, if that person so wishes, accompaniment of that person;

b) protective removal from the Community in which the injured person lives, with placement in another Community that is informed of the facts and willing to receive the person;

c) a territorial ban, which may be supported by the location device under the conditions of Article 33;

d) an intensive transformation pathway, with verifications at least every six months;

e) reparation of the harm, in the forms accepted by the injured person;

f) exclusion from the sortitions for offices and for the Councils for the duration of the pathway.

3. Where there is a concrete and present danger to the safety of others which cannot be contained by the measures of paragraph 2, the Guarantee Tribunal may order protective containment in an accompaniment Community. The accompaniment Community is an open Community, informed of the facts and willing to receive the person, distinct from the Containment Community of Article 32: it has no protected perimeter and no supervision by the Civic Protection Corps. The decision establishes the obligation to remain in the Community and daily accompaniment, with a transformation pathway; the Guarantee Circle of the accompaniment Community verifies compliance and reports to the Tribunal at least every three months. The person is not held by force; their departure shall be notified without delay to the Guarantee Tribunal, which may review the measures within the limits of this Article and of Article 34. Protective containment lasts for as long as the danger persists and shall be reviewed at least every six months. Its total duration may not exceed five years for Grade 5 and ten years for Grade 6.
4. During protective containment the person retains member status and the guarantees of Article 32, paragraph 2.
5. The pathway is concluded by a decision of the Guarantee Tribunal which ascertains its outcome and, if positive, orders full reintegration.

## Art. 31 — Recidivism and extreme measures

1. The extreme measures of Article 1.3-bis of the Constitution may be ordered only where all the following conditions are jointly met:

   a) a previous final decision has ascertained against the person a fact of Grade 5 or 6;

   b) a new fact of Grade 5 or 6 is ascertained by final decision;

   c) there is a concrete and present danger to the safety of others;

   d) no less restrictive measure is suitable to protect persons.
2. The decision shall declare the loss of member status and order, in the alternative, High-Security Containment or Definitive Removal from the Circles concerned. Definitive Removal shall be preferred where it is sufficient to protect persons.
3. The decision ordering an extreme measure is always subject to the review of Article 35, even in the absence of an appeal, and becomes final only after confirmation.
4. The cases and the measures of this Article may not be extended.

## Art. 32 — Regime of Containment and of Removal

1. High-Security Containment takes place in a Containment Community with a protected perimeter, under the surveillance of the Civic Protection Corps, in accordance with Article 30.3 of the Constitution and Code 14.
2. The person retains the right to individual housing, to food, to water, to minimum energy and to health care. The person also has the right to contact with loved ones, to learning, to meaningful activities, to the transformation pathway and to the assistance of the trusted facilitators.
3. Isolation, restraint and sedation used as a sanction, imposed labour and any inhuman or degrading treatment are prohibited.

4. Containment has no predetermined duration and is not perpetual. The Guarantee Tribunal, in a composition different from the one that decided, shall review the dangerousness at least every twelve months and, at the request of the person, every six months. When the concrete and present danger ceases, the measure shall cease and a reintegration pathway shall be initiated, with readmission to member status.

5. A Guarantee Circle belonging to a different Circle 2 shall visit the Containment Community at least every three months, including without notice, and shall publish a report in anonymised form.

6. Definitive Removal entails a permanent prohibition on residing in and on entering the Circles in which the injured person and the affected community live. The person shall be relocated to another Circle whose Assembly, informed of the facts, is willing to receive that person, or by means of an Autonomous Coexistence Pact pursuant to Article 4.9-bis of the Constitution. The guarantees of paragraph 2 remain unaffected.

7. The territorial ban may be supported by the device of Article 33.

## Art. 32-bis — Persons living by means of a Pact and removal from the common settlement

1. This Chapter applies to a person living by means of an Autonomous Coexistence Pact with the following adaptations:

   a) the measures that presuppose member status do not apply, including the loss of member status of Article 31, paragraph 2, the suspension of the CdR and exclusion from sortitions;

   b) in their place the competent body may order the revision of the Pact: the modification of its conditions or, where the protection of persons so requires, the placement of the portion with another Circle 1 in accordance with Article 4-bis, paragraph 6, of Code 10, informed of the facts;

   c) the protective removal of Articles 29, paragraph 5, letter c), and 30, paragraph 2, letter b), and, only where all the conditions of Article 31, paragraph 1, are met, Definitive Removal are carried out by means of the revision of letter b);

   d) violation of the conditions of the Pact is classified in accordance with Article 26 and does not entail the cessation of the Pact.

2. The removal provided for by Article 4.9-ter of the Constitution takes place as follows:

   a) the Guarantee Circle, upon a report pursuant to Article 5, ascertains that the person resides stably in the common settlement without being a member, without a Pact and without contribution, beyond the time limit for hospitality of Article 4.9, letter b), of the Constitution and outside the case of Article 4-bis, paragraph 7, of Code 10;

   b) Circle 1 shall offer the Pact in writing, indicating the portion identified pursuant to Article 4-bis of Code 10, and shall inform the person of the right to enter or re-enter the Confederation; the Guarantee Circle shall propose a mediation;

   c) the refusal is persistent when the person has refused or left unanswered two offers, the second presented after the mediation and at least thirty days after the first;

   d) the Guarantee Circle then refers the case to the Guarantee Tribunal, which hears the person with the guarantees of Article 25, paragraph 4, verifies that the portion is sufficient for self-sufficiency pursuant to Article 4.9-bis of the Constitution and may order removal from the common settlement with the assignment ex officio of the portion;

   e) the removal is carried out without the use of force on the person and consists in the cessation of ordinary access to the common settlement and in making available the portion and the means to transfer the personal-use goods, in accordance with Code 11;

   f) drinking water, life-saving emergency care and the protection of minors remain guaranteed, pursuant to Article 1.3 of the Constitution, as do the rights of the minors of the nucleus provided for by Article 4.9-bis of the Constitution;

   g) the person may at any time accept the Pact or enter the Confederation, and the procedure lapses.

Review under Article 35, paragraph 2, is permitted against the decision.

3. During the transition Article 37, paragraph 3, applies: the removal of paragraph 2 is not carried out.

## Art. 33 — Location device

1. The location device provided for by Article 18.7 of the Constitution may be ordered only by final decision of the Guarantee Tribunal for a fact of Grade 5 or 6, for the direct protection of the injured person or of the Community.
2. The device is not biometric and records neither audio nor video. It detects exclusively the violation of the protection perimeter or of the territorial ban established by the decision.
3. The measure lasts no more than twelve months and is renewable only by a new reasoned decision.
4. The data are encrypted with a split key and are accessible only in the event of violation of the perimeter or of the ban. Accesses are logged and open to inspection. Data that are not relevant are automatically destroyed within seventy-two hours. Predictive uses and profiling are prohibited.
5. The device shall be ordered only as a less restrictive alternative to protective containment or to High-Security Containment, with the consent of the person, and may not be added to them. If the person does not consent, the Tribunal shall assess the other measures of Articles 30 and 31.

## Art. 34 — Precautionary measures and urgent review

1. Where there is an immediate danger to the safety of a person, the Guarantee Circle or the Civic Protection Corps may order the immediate separation of the persons and provisional removal from a place, in accordance with Code 14.
2. Every measure that limits freedom of movement shall be communicated without delay to the Guarantee Tribunal, which shall validate, modify or revoke it within twenty-four hours. In the absence of validation the measure shall cease.
3. The precautionary measure lasts no more than thirty days. It is renewable by reasoned decision until the decision on the fact and does not constitute an anticipated ascertainment of responsibility.
4. The person subjected to a precautionary measure is guaranteed adequate housing, the Basket and the assistance of Article 25, paragraph 4.

## Art. 35 — Review and finality

1. Against the decisions of the Clarification Assembly and of the Transformation Council, an appeal to the Review Panel of Article 17 is permitted, within fourteen days of communication. In these appeals the member of Article 17, paragraph 3, letter b), is replaced by a person with legal training validated in accordance with Code 5, drawn by lot from the list of Article 36, paragraph 1, letter a).
2. Against the decisions of the Guarantee Tribunal, review before a second Guarantee Tribunal, drawn by lot in a different Circle 2, is permitted within thirty days. For as long as only one Circle 2 exists, the second Tribunal shall be drawn by lot from among different persons belonging to other Communities.
3. If the review is requested only by the person to whom the measure is addressed, the measure may not be made more severe.
4. The decision is final when review has not been requested within the time limits or when it has been confirmed, except as provided for by paragraph 6.
5. The final decision shall be revised at any time where new elements emerge that demonstrate the error of the ascertainment.
6. The decisions of the Guarantee Tribunal ascertaining a fact of Grade 5 or 6 are always subject to the review of paragraph 2, even in the absence of a request, and become final only after confirmation, pursuant to Article 31.6 of the Constitution. Until confirmation, only the precautionary measures of

Article 34 shall apply.

## Art. 35-bis — Archive of decisions

1. The final decisions of the bodies provided for by this Chapter and those of the Review Panel shall be published in the federated Archive of decisions, with the facts ascertained, the grade, the measures and the statement of reasons.
2. Publication takes place in anonymised form, to protect the injured person, the person to whom the measure is addressed and minors. Where in the local context identification would nevertheless be possible, only the principle applied shall be published.
3. The decisions do not constitute a binding precedent. The body deciding a similar case shall consult the Archive and, if it departs from the prevailing approach, shall expressly state the reasons for doing so.
4. Each year one of the Guarantee Circles of the Communities of Circle 2, designated by rotation in coordination with the others pursuant to Article 36, paragraph 1, shall publish a summary of the approaches and of the divergences found. The summary has no normative value; it may form the basis of a proposal to amend the Codes.

## Art. 36 — Federated lists and sortition

1. The Guarantee Circle shall keep, in coordination with the other Guarantee Circles of Circle 2:

   a) the list of the persons trained and available for the bodies of this Chapter;

   b) the federated list of the persons with L3 competence available for the audits, the panels and the independent opinions provided for by the Codes.
2. The sortition is public and traced in accordance with Article 15 of Code 3.
3. No one may be drawn by lot from the lists of paragraph 1 who belongs to the Circle 1 concerned, that is, that of the person to whom the act is attributed or who is concerned by the decision, of the injured person or of the activity subject to audit or opinion, or who has carried out activities there in the last twenty-four months, nor anyone who has an interest in the outcome. This paragraph does not apply to the members whom the Codes have drawn by lot from among the members of the Circle 1 concerned, such as those of Article 27, paragraphs 1 and 2.
4. Unless the Codes provide otherwise, an audit or opinion assignment shall not exceed thirty days. The time devoted to it shall be counted towards the CBO.

## Art. 37 — Transitional regime and relationship with the legal order in force

1. Until the completion of the transition governed by Code 16, and in every territory in which the jurisdiction of a State applies, this Chapter has effect as an internal and voluntary legal order among the members and the persons living by means of an Autonomous Coexistence Pact, who accept it with the Pact.
2. Facts that constitute a criminal offence under the legal order in force remain subject to the jurisdiction of the State. No one may be dissuaded from turning to the authorities; anyone who is in danger shall be helped to do so. The obligations to report and to file a complaint provided for by law shall be complied with.
3. During the transition, measures of containment, of coercive removal or of location may not be enforced. Article 25, paragraph 9, as regards protected educational reception, and Article 30, paragraph 3, and Articles 31, 32, 33 and 34 shall apply only in respect of the non-coercive protection measures and of the effects on membership of the Circle.
4. During the transition, loss of member status consists in exclusion from the pilot Circle, ordered in accordance with the statute of the entity and the applicable law.

5. Until a Basin is constituted, or until the members required can be drawn by lot in the Basin, the functions that the Codes assign to the Guarantee Tribunal, including the second Tribunal of Article 35, paragraph 2, to the Review Panel and to the Transformation Council, and the replacement of the Guarantee Circle provided for by Article 15, paragraph 3, are exercised by a panel with the same number of members, drawn by lot from the public list of trained persons of other pilot Circles or of kindred entities that have accepted this Chapter, kept pursuant to Article 36. If the list does not allow the drawing by lot within the time limit, the panel is drawn by lot, by way of derogation from Articles 17, paragraph 3, 27, paragraphs 2 and 3, and 36, paragraph 3, from among the members of the pilot Circle unconnected with the facts, with the persons involved and with every previous instance, on the model of Article 35, paragraph 2. A panel carrying out a review is composed of persons other than those who decided. A panel composed only of members may not order the protected educational reception of Article 25, paragraph 9, or the measures of Articles 30, paragraph 3, 31 and 33. If no panel can be constituted within the time limit for a validation, the measure ceases.

6. After the closure of the transition, in every territory in which the jurisdiction of a State applies, paragraphs 2, 3 and 4 continue to apply, as do the provisions of the Codes that, for the period of the transition, refer to this Article or limit interventions on persons to what is permitted by the law in force, including Articles 1, paragraph 4, 26-bis, paragraph 9, 29, paragraph 6-bis, last sentence, and 32-bis, paragraph 3, of this Code, Articles 2-bis, paragraph 3-quater, letter f), 2-ter, paragraph 6, and 8, paragraph 10, of Code 6, Article 4-bis, paragraph 9, of Code 10, Articles 7-bis, paragraphs 2 and 3-ter, and 7-ter, paragraph 9, of Code 12 and Articles 8-quinquies, paragraph 6, and 8-sexies, paragraph 13, of Code 14. In these cases references to the pilot Circle shall be understood as referring to Circle 1.